

Mr. Jayanta Chatterjee vs Mrs. Nila Chatterjee on 12 August, 2014

Author: Sanjib Banerjee

Bench: Sanjib Banerjee

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Sl. 10
12.08.2014

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S.d.

C O 2696 of 2014

Mr. Jayanta Chatterjee
-versus-
Mrs. Nila Chatterjee

Mr. Ajit Kumar Barat
Mr. Anil Kumar Das
Mrs. Keya Banerjee
.....for the petitioner.

Mr. Narayan Ch. Mondal
Ms. Aditi Sen
...for the opposite party.

The grievance of the petitioning husband is that despite a specific assertion in the written objection to the application under Section 24 of the Hindu Marriage Act, 1955 that the petitioner had no income and suffered from a severe neurological disorder, the trial court has allowed alimony pendente lite in favour of the wife. The allegation of the wife was that the husband earned Rs.1,50,000/- per month. Such allegation was dealt with at paragraph 8 of the objection filed by the husband. It was specifically averred that the husband had no income at the time when the petition was prepared as the husband suffered from a serious incapacity. It appears from the order impugned that the court has not taken into account relevant considerations. If the court believed

that the husband's income was Rs.1.5 lakh a month, the court should not have allowed a paltry amount of Rs.8000/- as monthly alimony pendente lite to the wife who earns a meagre sum of Rs.6000/- per month.

It was necessary in the circumstances, for the court to take evidence to ascertain the income of the husband, for an appropriate part thereof to be directed to be paid to the wife.

CO No. 2696 of 2014 is allowed by setting aside the order impugned dated July 7, 2014 passed in Matrimonial Suit No. 90 of 2011 by the 1st court of the Additional District and Sessions Judge at Sealdah The matter is remanded before the matrimonial court by restoring the application under Section 24 of the said Act of 1955 to the file of the court. The matrimonial court is requested to dispose of the matter by taking oral evidence, if felt necessary, and by permitting both parties to disclose documents in support of their rival contentions. The court below should ensure that the application is disposed of within a period of four months from the date of receipt of a copy of this order.

There will be no order as to costs.

Urgent certified website copies of this order, if applied for, be made available to the parties upon compliance of the requisite formalities.

(Sanjib Banerjee, J.)